

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 37-002

Amendments to Titles 5 and 6 of the Chickasaw Nation Code

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal Legislature has previously enacted rules for the courts of the Chickasaw Nation, and

WHEREAS, the Chickasaw Tribal Legislature desires to amend the marriage and domestic relations provisions.

NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby authorizes, approves, and adopts the following amendments to Titles 5 and 6 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red; omissions without deletions signified by “***”; deletions stricken through):

“TITLE 5

"5. COURTS AND PROCEDURES"

ARTICLE C

GENERAL PROVISIONS

SECTION 5-103.18

FEES.

A. Notwithstanding any other provisions of law, the Court Clerk of the District Court, or the Clerk of any other Court shall charge and collect the following fees:

1. For furnishing photographic copies of photographic \$1.00
records, or of typewritten script or printed records, per page
2. Approving bond or undertaking, including certificate and seal. \$1.00
3. Making copy of an instrument of record or on file, first page. \$.50
Subsequent pages (each) \$.50
4. Certifying and Seal \$.50
5. Authentication of court records. \$5.00
6. ~~Issuance of Marriage License. \$35.00~~

- 67. Mailing any documents. \$5.00
- 78. Issuance of Divorce Petition. \$35.00
- 89. Service of Process Per Attempt (in Pontotoc County) \$40.00
 - Service of Process Per Attempt (outside Pontotoc County) \$60.00
 - Service of Process Per Attempt (outside Chickasaw Nation) \$100.00
- 940. Issuance of Domestic Relations Petition. \$35.00
- 1041. Copy of Chickasaw Nation Code regarding Domestic Relations. . . \$40.00
- 1142. Other applications. \$30.00

B. Number 1142 above includes all post trial applications except applications for correction of court records (*nunc pro tunc*).

D. Number 89 above establishes the following fees for service of process, said amount to be paid by money order (or if a member of the Chickasaw Bar Association, by check): forty dollars (\$40) per service of process attempt and/or prisoner transport made anywhere within Pontotoc County; sixty dollars (\$60) per service of process attempt and/or prisoner transport made within the Chickasaw Nation other than Pontotoc County, and one hundred dollars (\$100) outside the Chickasaw Nation, plus mileage at the prevailing federal mileage rate. Notwithstanding the foregoing, the Prosecutor, the Division of Youth and Family and its departments therein, and indigent defense counsel shall not be charged any cost associated with service of process or prisoner transport. The Chickasaw Nation District Court is authorized to collect said fees for service of process and prisoner transports on behalf of the Chickasaw Lighthorse Police Department. Said fees, however, shall be detailed and transferred to the Chickasaw Lighthorse Police Department on a monthly basis to be used for the benefit of and to defray the costs for services performed by the Chickasaw Lighthorse Police Department. The Court is authorized to pay any such transport fees, mileage and per diem costs from the Court Fund.

SECTION 5-1305.4

~~SPOUSAL HUSBAND AND WIFE PRIVILEGE.~~

B. **General Rule of Privilege.** An accused in a criminal proceeding has a privilege to prevent ~~his or her~~ his spouse from testifying as to any Confidential communication between the accused and the spouse.

TITLE 6

“6. DOMESTIC RELATIONS AND FAMILIES”

ARTICLE A DISSOLUTION OF MARRIAGE

SECTION 6-101.56

DEFINITION OF MARRIAGE, COMMON LAW MARRIAGE.

A. “Marriage” means a personal relation arising out of a civil contract between ~~two individuals~~ members of the opposite sex to which the consent of parties legally competent of

contracting and of entering into it is necessary, and the Marriage relation shall be entered into, maintained or abrogated as provided by law.

SECTION 6-101.65

ACTIONS THAT MAY BE BROUGHT; REMEDIES.

B. The Court may hear any action regarding divorce, annulment, separate maintenance, and the division of community property and debt from any Marriage in any jurisdiction, including those outside the Chickasaw Nation. Any Marriage from any other jurisdiction shall be presumed valid unless the validity of such Marriage is challenged by either party in a proceeding for divorce, annulment, separate maintenance and/or the division of community property.

CB. After parties have established jurisdiction for any purpose, the Court shall have jurisdiction to settle all claims made between the parties under the equity clean up rule.

SECTION 6-101.8

RESERVED PERSONS HAVING CAPACITY TO MARRY.

~~Any unmarried person of the age of eighteen (18) years or upwards and not otherwise disqualified is capable of contracting and consenting to Marriage with a person of the opposite sex but no person under the age of eighteen (18) years shall enter into the Marriage relation. Except upon the consent and authority expressly given by the parent or guardian of such underage applicant. Provided, however, every person under the age of sixteen (16) years is expressly forbidden and prohibited from entering into the Marriage relation. Provided, that this section shall not be construed to prevent the Court from recognizing the Marriage of persons under the ages herein mentioned, in settlement of suits for seduction or paternity; and the Court may also recognize the Marriage of persons under the ages herein mentioned when the unmarried female is pregnant, or has given birth to a child of the parties, whether or not any suits for seduction or paternity have been brought; provided that the Court shall recognize the Marriage of any male under the age of sixteen (16) or any female under the age of sixteen (16) when the unmarried female is pregnant unless at least one parent of each minor, or the guardian or custodian of such child, is present before the Court and has an opportunity to present evidence of such Marriage. No Marriage may be recognized when such Marriage would be incestuous under this Act.~~

SECTION 6-101.9

RESERVED MARRIAGE BETWEEN PERSONS OF SAME GENDER NOT RECOGNIZED.

A. ~~A Marriage between persons of the same gender performed in any jurisdiction shall not be recognized as valid and binding in the Chickasaw Nation as of the date of the Marriage.~~

B. ~~No Marriage will be recognized between persons of the same sex; however, nothing in this title prohibits members of the same sex from entering written contracts one with the other.~~

SECTION 6-101.56**RESTORATION OF MAIDEN OR FORMER NAME;
ALIMONY; PROPERTY DIVISION.**

When a divorce is granted, ~~either spouse~~ the wife shall be restored to ~~his or her~~ ~~her~~ ~~maiden or former name~~ if ~~he or~~ she so desires. The Court shall enter its decree confirming in each spouse the property owned by him or her before Marriage and the undisposed of property acquired after Marriage him or her in his or her own right. Either spouse may be allowed such alimony out of real and personal property of the other as the Court shall think reasonable, having due regard to the value of such property at the time of the divorce. Alimony may be allowed from real or personal property, or both, or in the form of money judgment, payable either in gross or in installments, as the Court may deem just and equitable. As to such property, whether real or personal, which has been acquired by the parties jointly during their Marriage, whether the title thereto be in either or both of said parties, the Court shall, subject to a valid antenuptial contract in writing, make such division between the parties as may appear just and reasonable, by a division of the property in kind, or by setting the same apart to one (1) of the parties, and requiring the other thereof to be paid such sum as may be just and proper to effect a fair and just division thereof. The Court may set apart a portion of the separate estate of a spouse to the other spouse for the support of the children of the Marriage where custody resides with that spouse.

SECTION 6-101.57**SEPARATE PROPERTY.**

Except as mentioned in the preceding Section, neither ~~spouse~~ ~~husband nor wife~~ has any interest in the separate property of the other.

Chapter 1 Article C is deleted in its entirety.

SECTION 6-401.6**ELIGIBILITY TO ADOPT BY STATUTORY PROCESS.**

A. The following persons are eligible to adopt a Child pursuant to this Chapter, and subject to the placement preferences of Section 6-201.9, "Placement Preferences":

1. a ~~married couple~~ ~~husband and wife jointly~~;
2. either ~~spouse~~ ~~the husband or wife~~ if the other spouse is a Parent of the Child;

SECTION 6-401.21**ADOPTION HEARING.**

A. At any time after the written home study report has been filed, the Court, upon motion or request of the Petitioner(s) or upon its own motion, shall fix a time for hearing the petition for adoption. The Petitioner(s) and Adoptee shall appear personally at the hearing. Provided that, if the joint Petitioners are ~~married~~ ~~husband and wife~~ and it would be unduly difficult for one of the Petitioners to appear at the hearing, the Court may waive the attendance of that Petitioner if the other spouse is present."

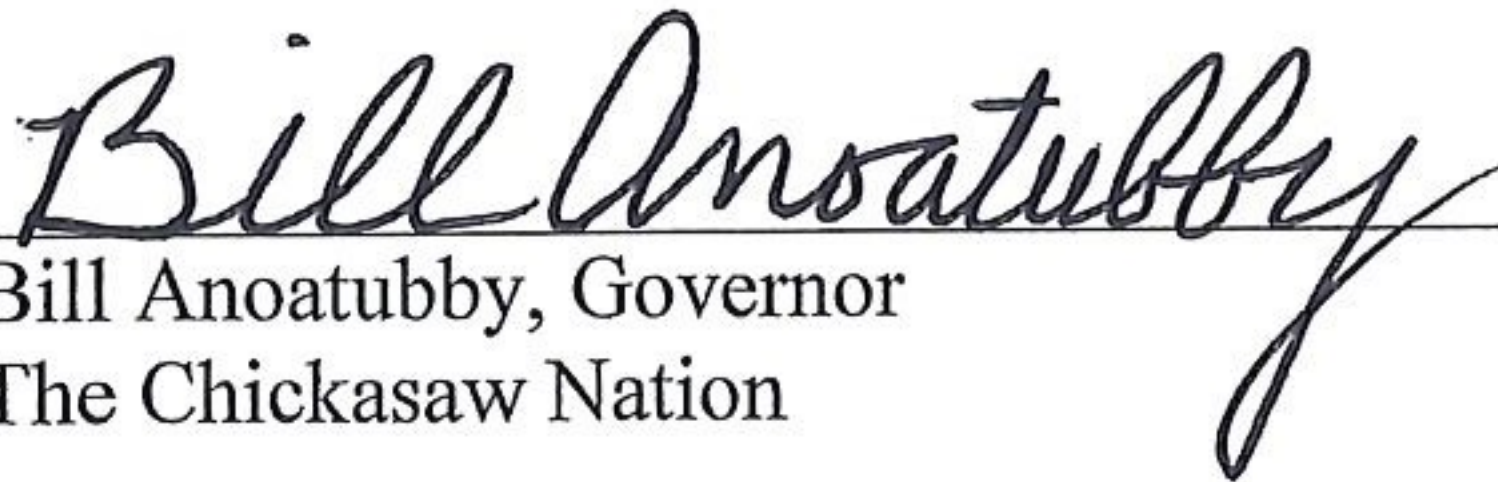
Executed in regular session of the Chickasaw Tribal Legislature, Meeting at Ada, Oklahoma, on January 17, 2020, by a vote of 9 ayes, 1 nays, 0 abstentions.



Chairperson
Chickasaw Tribal Legislature



Secretary
Chickasaw Tribal Legislature

Concur:  Date: JAN 17 2020
Bill Anoatubby, Governor
The Chickasaw Nation

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 37-002
Amendments to Titles 5 and 6 of the Chickasaw Nation Code

Explanation:

This resolution provides amendments to Title 5 (Courts and Procedures) and Title 6 (Domestic Relations and Families). Title 6, Chapter 1, Article C (Marriage Ceremonies) of the Chickasaw Nation Code is repealed. Since this article is repealed, additional modifications were made to Title 5 and Title 6 of the Chickasaw Nation Code, including the following: Section 5-103.18 (Fees); Section 5-1305.4 (formerly, Husband and Wife Privilege); Section 6-101.5 (Actions That May Be Brought); Section 6-101.6 (Definition of Marriage, Common Law Marriage); Section 6-101.8 (Persons Having Capacity to Marry); Section 6-101.9 (Marriage between Persons of the Same Gender Not Recognized); Section 6-101.56 (Restoration of Maiden or Former Name; Alimony; Property Division); Section 6-101.57 (Separate Property); Section 6-401.6 (Eligibility to Adopt by Statutory Process); and Section 6-401.21 (Adoption Hearing).

Proposed by:

Executive

Presented by:

Legislative Committee,
Chickasaw Tribal Legislature